MARVEL MTISI
versus
MUROMBO JOSIAH MIMANA
and
MIMJ ENTERPRISES (PRIVATE) LIMITED
and
THE REGISTRAR OF COMPANIES

HIGH COURT OF ZIMBABWE
DEME J
HARARE, 6 and 9 February 2026

Opposed application

W Ncube for the applicant
L Madhuku for the 1st and 2nd respondents
No appearance for the 3rd Respondent.

DEME J: The Applicant approached this court in terms of Rule 29 seeking an order for the rescission of a default judgment granted by this court on 30 June 2025. In particular, the Applicant is seeking the following relief:

> "1. The Application be and is hereby granted
> 2. The order issued by this Honourable Court, per Honourable Dembure J under HCH2552/25 be and is hereby rescinded;
> 3. The new CR6 Form issued by the 3rd Respondents on the basis of the order under HCH 2552/25 and its purported consequences on the 2nd Respondent's bankers and clients be and are hereby declared null and void.
> 4. Counsel for the 1st and 2nd Respondents to pay costs *debonis propriis* or the 1st and 2nd Respondents to pay the costs of suit on legal practitioners and client scale jointly and severally."

It is common cause that the 1st Respondent and the Applicant once lived together as a couple in terms of an unregistered customary union. They have ceased to exist as such. The Applicant approached this court in case number HCHF1566/25 seeking, among other things, an order for the apportionment of the assets acquired during the subsistence of the unregistered customary union. The case is still pending before this court.

The Applicant and the 1st Respondent have been experiencing challenges in the running of the 2nd Respondent and MIMJ Mining Corp. (Pvt) Ltd (hereinafter called "the companies". These companies were registered as such during the subsistence of the unregistered customary union between the Applicant and the 1st Respondent. Following the disputes in the running of the companies, the Applicant approached this court in case number HCH2717/25 on an urgent basis, which was filed on 9 June 2025. In case number HCH2717, this court, on 20 June 2025, ruled that:

> "1. That the respondents be and is hereby interdicted from unilaterally signing contracts, effecting alterations to financial arrangements, or entering into any transactions that may result in the dissipation of company assets belonging to MIMJ Enterprises (Private) Limited and MIMJ Corp (Private) Limited, including unilaterally disposing of or dealing in the assets of the companies.
> 2. That the signing mandate for all financial institutions associated with the aforementioned companies be modified to require joint authorization from both directors.
> 3. That, pending the finalisation of the action proceedings under case number HCHF1566/25, the Applicant and the Respondents shall jointly administer the affairs of the aforementioned companies, with each party respecting the rights and fiduciary obligations of the other as director and shareholder.
> 4. That any contractual novation, amendments, or agreements concerning the companies shall be executed solely upon the joint authorization of both directors."

On 30 June 2025, the 1st Respondent obtained a default judgment against the Applicant in case number HCH2552/25. In particular, the default judgment is as follows:

> "1. The 1st defendant be and is hereby removed from being a director of the 2nd defendant
> 2. The Registrar of Companies shall amend the 2nd defendant company's records, in particular, CR6 to reflect the removal of the 1st defendant as a director of the 2nd defendant
> 3. The plaintiff, the 2nd and 3rd defendants shall cause the appointment of the new director within five (5) days of the date.
> 4. The 1st defendant is hereby prohibited from holding herself out as a director of the 2nd defendant or acting in any capacity that suggest she remains director of the 2nd defendant.
> 5. The 1st defendant shall refrain from interfering with the business operations of the 2nd defendant, including but not limited to approaching its premises, contacting its suppliers and employees or communicating with its business partners.
> 6. The 1st defendant shall pay the costs of suit."

The Applicant was cited as the 1st Defendant in case number HCH2552/25, while the 2nd Respondent was cited as the 2nd Defendant. The matter in case number HCH2552/25 was lodged with this court on 2 June 2025. It is alleged that the Applicant was served with summons and declaration in case number HCH2552/25 on 9 June 2025.

The Applicant alleged that the order in case number 2552/25 was granted in error as the order therein contradicted the order in case number HCH2717/25. It is the averment of the Applicant that had the court been aware of the order in case number HCH2717/25, the court would not have granted default judgment in case number HCH2552/25.

Further, the Applicant affirmed that the 1st Respondent ought to have ensured that they served her with notice of set down for the hearing of the default judgment. In this connection, the Applicant insisted that the order in case number HCH2552/25 was granted in her absence.
The Applicant further affirmed that pursuant to the default judgment in case number HCH2552/25, the 1st Respondent went on to change the directors in the companies. On this basis, she prayed for the nullification of the constitutive documents for the companies.

The matter was opposed by the 1st and 2nd Respondents, who initially raised the point *in limine* to the effect that the new evidence incorporated in the answering affidavit ought to be expunged. Prof. Madhuku, during his oral submissions, highlighted that the 1st and 2nd Respondents are no longer pursuing this point.

On the merits, the 1st and 2nd Respondents (hereinafter called "the Respondents" averred that the order in case number 2552/25 was not erroneously granted. They also asserted that the order was not erroneously sought. The Respondents claimed that the Applicant was served with summons and declaration on 9 June 2025. They additionally maintained that the Applicant chose not to enter an appearance to defend. According to the Respondents, the court was satisfied that the Applicant failed to enter an appearance to defend and proceeded to grant default judgment. On this basis, the Respondents contended that the court did not commit any error.

The Respondents also affirmed that the Applicant ought to have cited the directors who were appointed following the granting of default judgment in case number HCH2552/25. According to the Respondents, such directors will be affected by the relief sought by the Applicant.

At the hearing, I inquired from Prof. *Ncube* whether the Applicant was absent in case number HCH2552/25 in the manner contemplated by Rule 29. He argued that the Applicant ought to have been served with the notice of set down in case number HCH2552/25. However, no authority or rule was advanced in this regard in support of this position. Prof. *Madhuku*, pursuant to the point advanced by the court, raised a new point *in limine* that the Applicant

proceeded to approach this court in terms of the wrong rule. He submitted that this is a point of law which can be raised at any time. Prof. *Madhuku* argued that the Applicant ought to have proceeded in terms of Rule 27 where she will be required to demonstrate good and sufficient cause. He also maintained that the Applicant cannot be described as an absent party in the manner contemplated by Rule 29 as she was cited in case number HCH2552/25. Prof. *Ncube* argued that a mere citation of a party does not disqualify any litigant from proceeding in terms of Rule 29 where the judgment is granted in his or her absence.

Before dealing with the merits of this matter, I need to make a determination on the fresh point *in limine* that arose on the day of the hearing. There is a need for me to determine whether the Applicant approached this court in terms of the correct rule.

Rule 29 provides that:

> "(1) The court or a judge may, in addition to any other powers it or he or she may have, on its own initiative or upon the application of any affected party, correct, rescind or vary—
>
> (a) an order or judgment erroneously sought or erroneously granted in the absence of any party affected thereby; or
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> (b) an order or judgment in which there is an ambiguity or a patent error or omission, but only to the extent of such ambiguity, error or omission; or
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> (c) an order or judgment granted as a result of a mistake common to the parties.
>
> (2) Any party desiring any relief under this rule may make a court application on notice to all parties whose interests may be affected by any variation sought, within one month after becoming aware of the existence of the order or judgment.
>
> (3) The court or a judge shall not make any order correcting, rescinding or varying an order of judgment unless satisfied that all parties whose interests may be affected have notice of the order proposed."

There is need for this court to define the phrase:

"in the absence of any party affected thereby."

referred to in Rule 29(1)(a). In paragraph 37 of the Applicant's Heads, it is argued that the 1st Respondent ought to have served the Applicant with the notice of set down. In particular, paragraph 37 of the Applicant's heads is as follows:

> "It is common cause that the legal counsel for the 1st and 2nd Respondents set down the matter for default judgement and did not, by all means serve the Applicant with the default judgment notice of set down hence the order in question was sought and granted in the absence of the Applicant."

Prof. *Ncube* argued that the phrase can be extended to a litigant who failed to appear on the day of hearing, while Prof. *Madhuku* submitted that this should not be stretched to include a party who was cited but failed to appear. It is not disputed that the Applicant was cited in case number HCH2552/25. It is common cause that there is a return of service filed. According to the return of service, it is alleged that the Applicant was served with summons and declaration on 9 June 2025. It was not resisted that there is no appearance to defend filed on behalf of the Applicant in case number HCH2552/25. It is not disputed that this court granted a default judgment against the Applicant. It is further common cause that at the material time when the default judgment was granted, there was no appearance to defend filed on behalf of the Applicant.

Where the Defendant has failed to enter an appearance to defend, the Plaintiff may proceed in terms of Rule 23. Rule 23 provides that:

> "23.(1) In cases where the plaintiff's claim is not for a debt or liquidated demand only, and the defendant has failed to enter appearance after the period prescribed in the summons for entering appearance, the plaintiff shall set down the case for judgment on an appropriate day specified in these rules relating to set down of unopposed matters, without notice to the defendant, and whereupon, subject to rule 25, the court may grant judgment or make such order as it considers the plaintiff is entitled to upon the summons and declaration.
>
> (2) In cases where the plaintiff's claim is not for a debt or liquidated demand only or where it is for a debt or liquidated demand only but argument in relation to any aspect of the suit is considered necessary, and the defendant has failed to enter appearance to defend within the period specified in the summons for entering appearance or, having entered appearance, has been duly bared in default of plea, the plaintiff may without notice to the defendant set down the case for judgment on an appropriate day specified in these rules relating to set down of unopposed matters, and whereupon, subject to rule 25, the court may grant judgment or make such order as it considers the plaintiff is entitled to upon the summons and declaration.
>
> (3) The provisions of this rule shall not apply to actions for divorce, judicial separation or nullity of marriage."

In terms of Rule 23(1) and (2), the Plaintiff may proceed, without notice to the Defendant, where the Defendant has failed to enter an appearance to defend. The matter in HCH2552/25 does not fall within the categories contemplated in Rule 23(3). Therefore, the 1st Respondent was not obliged to give notice to the Applicant for the hearing of the default judgment following the alleged failure of the Applicant to enter an appearance to defend. On this basis, I am of the view that the Applicant does not qualify to be defined as an absent party in a style envisaged by Rule 29(1)(a) when all the circumstances are taken into account. In case

number HCH2552/25, the Applicant was cited and was called upon to respond to the summons within ten days. A party who is absent cannot be called upon to respond. Once a party has been properly cited in the proceedings before the court, that cited person cannot subsequently claim to be absent in the manner contemplated by Rule 29. In defining the absence of a party in terms of Rule 29, formerly Rule 449, Prof *Madhuku* referred the court to the case of *Zuze* v *The Trustees of Bongayi Rushworth Mlambo and Anor*[1], where the court held that:

> "The requirements for the rescission of default judgments in terms of r 449(1)(a) of the High Court Rules 1971 are well established. In order to invoke this sub-rule the applicant must establish that:
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> - the judgment to be rescinded was granted in error;
> - the applicant was absent when the judgment was granted; and
> - the applicant's rights or interests were affected by the judgment.
>
> See *Tiriboyi* v *Jani & Anor* 2004 (1) ZLR 470 (H).
>
> In the instant case, it is not in dispute that the applicant was not a party to the proceedings in Case No. HC 9554/16 and was absent when the default judgment in that case was granted. It is also not in dispute that he had a substantial interest in the matter by way of his right of occupation in the property when the eviction order was granted. It follows that the applicant was an affected party and that the default judgment was granted in his absence within the contemplation of r 449(1)(a). The first respondent accepts this position without demurrer. What remains in dispute is whether or not the default judgment was granted in error."

In *casu*, in the present application, what remains to be determined is whether the application was granted in error, having reached a conclusion that the Applicant was not absent in case number HCH2552/25. The Applicant alleged that the order in case number HCH2552/25 was erroneously sought and erroneously granted. It is my considered view that the court was satisfied that the Applicant failed to enter an appearance to defend, having been allegedly served with the summons and declaration. At the stage of application of a default judgment, the court is obliged to examine whether there is proof of service. Prof. *Ncube* argued that the court ought not to have granted default judgment in case number HCH2552/25 if it was aware of the order in case number HCH2717/25. Reference was made to the cases of *Dhlamini and Ors* v *Ncube and Ors*,[2] *Nyingwa* v *Moolman*[3] and *Matambanadzo* v *Goven*[4].

[1] SC69/19.
[2] HB11/18.
[3] 1993 (2) S.A. 508 (T.K.
[4] 2004 (1) ZLR 399 (S).

In my view, even if the court was aware of the order in case number HCH2552/25, it was difficult for the court to decline the granting of the default judgment sought on the strength of proof of service. Where there is proof of service, one may jump into a conclusion that the Applicant could have waived her rights arising from the order in case number HCH2717/25. Given the surrounding circumstances, I am unable to find an error committed by the court. For the Applicant who was allegedly served with the process, proceeding in terms of Rule 29 may not be appropriate. The Applicant ought to have proceeded in terms of Rule 27.

In my opinion, the present application is founded on the wrong cause of action. The factual matrix for the Applicant's case does not properly fit within the provisions of Rule 29. A cause of action has been widely defined in our jurisdiction. In the case of *Abrahams & Sons* v *SA Railways and Harbours*[5], the court defined the cause of action in the following way:

> "The proper meaning of the expression cause of action' is the entire set of facts which gives rise to an enforceable claim and includes every act which is material to be proved to entitle a plaintiff to succeed in his claim. It includes all that a plaintiff must set out in his declaration in order to disclose a cause of action."

Further, it is an established principle that the Applicant who approaches the court must specify the correct legal provision upon which the application is founded so as to inform the court and the opposite party. Thus, the application must comply with the relevant substantive provisions for the application to be properly before the court. Reference is made to the case of *Bushi* v *GMB and Ors*[6], where CHITAPI J remarked as follows:

> "The application filed by the applicants' legal practitioner is hopelessly inadequate in form and substance. I deal with the inadequacies in the application hereunder. Firstly the application does not indicate the provisions of the law under which it is made. I will accept that form 29 of the High Court rules does not specifically provide that the applicant relying on a provision of the law should cite the rule under which the application is made. However, in practice, any astute legal practitioner making an application in terms of a statutory provision including a rule of court is expected to indicate the rule or provision concerned. The need to cite the relevant provision of the law under which the application is made, where applicable of course, cannot be overemphasized. The citation of the correct and relevant provision attunes the court to its jurisdiction and the judge or court as the case may be immediately opens up to the provision and if need be researches on the provision if it is not one that immediately comes to mind.
>
> Notwithstanding that form 29 does not provide for the rule or statutory provision citation, it should be accepted as a basic rule and pre-requisite in any application grounded on a statutory provision or rule of court that the provision or rule be cited. If not cited in the heading "court

[5] 1933 CPD 626.
[6] HH 326/17

> application…..” then the founding affidavit should at least contain a statement by the applicant that he or she is making an application in terms of the specific provision or rule. It should not be left to the judge to have to go through all the papers filed in the application in order to determine the nature of the application. I have indeed dealt with countless applications where the provision or rule if applicable has been cited. This is as it should be. It is a matter of common sense and logic. It is to me no different from the need for a party to provide a citation for a legal case authority intended to be relied upon in heads of argument. The case citation is indicated as a matter of common sense practice and logic because the party citing the case wants the judge to read the case. A statutory or rule specific application should using the same logic specify the statute or rule. I would extend my reasoning to non statutory or and non rule specific application. If the application is grounded in the common law, it should state so. After all Order 1 r 4 (2) is clear that the forms in the first schedule to the rules should not be used with slavish adherence, but be altered to suit the circumstances of the matter at hand.”

Thus, the Applicant relied on the wrong rule for the purposes of the present application. It is common cause that the Applicant’s legal practitioners perused the record in case number HCH2552/25 before filing the present application. In their perusal of the record, I am sure that they came across the proof of service. It is not clear why the Applicant, in the founding affidavit, chose to completely ignore this fact in her narration of events leading to the default judgment. This issue was brought to the attention of the Applicant by the 1st and 2nd Respondents in their opposing affidavit. The Applicant was only forced to comment on this issue in her answering affidavit. The availability of the proof of service filed in case number HCH2552/25 ought not to have escaped the mind of the Applicant’s legal practitioners. The proof of service, to a certain extent, helps to answer the question of whether the Applicant ought to have proceeded in terms of Rule 29 or Rule 27.

In my view, the present application is improperly before the court. The Applicant ought to have proceeded in terms of Rule 27. Prof. *Madhuku* argued that the present application must be struck from the roll following this defect. I do agree with his submission.

An order that the matter be struck from the roll will enable the Applicant to approach the court via the correct avenue. A dismissal is inappropriate in the circumstances. A dismissal will prevent the Applicant from rectifying the defect of the present application. Where the application is improperly before the court, the court cannot dismiss a nullity. My view is fortified by the

case of *Nhari* v *Robert Gabriel Mugabe and Ors*[7], where, in paragraph 45, the Supreme Court opined as follows:

> "[45] I am inclined to agree with the appellant that the order dismissing the entire claim was, in the circumstances, improper. The court had found that it had no jurisdiction to entertain the claims because such claims lay in the province of labour. Having so determined, there was therefore nothing that remained before the court. There was nothing further to dismiss. In *Edward Tawanda Madza & Others* v *(1) The Reformed Church in Zimbabwe Daisyfield Trust (2) The Reformed Church of Zimbabwe (3) Naison Tirivavi (4) The Dutch Reformed Church* SC 71/14 this Court remarked as follows:-
> "It is a contradiction in terms to dismiss a matter on the twin bases that it not urgent and that the applicant has no *locus standi* for the latter basis indicates that a decision on the merits of the application has been made in which event the applicant is barred from placing the matter on the ordinary roll for determination. The effect of the dismissal on the latter basis is that the applicant is put out of court and is deprived of his right to have the matter properly ventilated in a court application or trial. Where, however, the matter is struck off the roll for lack of urgency, the applicant, if so advised, may place the matter on the ordinary roll for hearing." (at pp 8 – 9 of the judgment)"

In terms of costs, the ordinary rule is that costs follow the outcome. I was not persuaded by any party to have a departure from this rule. In the circumstances, the following order is made:

A. The point *in limine* raised by the 1st and 2nd Respondents that the application is improperly before the court be and is hereby upheld.
B. Consequently, the application be and is hereby struck from the roll with costs.

DEME J. ……..

Thompson, Stevenson & Associates, Applicant's Legal Practitioners.
Moyo, Chikono, and Gumiro, 1st and 2nd Respondents' Legal Practitioners.

[7] SC161/20.